

26STCV15139 26STCV15139

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BACKGROUND

This case is centered on a motor vehicle accident. Plaintiffs Andrea and Mariana Deras allege that Defendant Jonathan M. Anderson Aviles, while driving for Uber, caused a motor vehicle accident which injured Plaintiffs.

On May 12, 2026, Plaintiffs filed a complaint against Defendants Jonathan M. Anderson Aviles and Uber Technologies, Inc.

On June 29, 2026, Defendant Aviles filed a demurrer.

On August 4, 2026, Plaintiffs filed an opposition.

On August 11, 2026, Defendant filed a reply.

TENTATIVE RULING

Defendant's demurrer to the 1st cause of action is OVERRULED.

Defendant's demurrer to the 2nd cause of action is SUSTAINED without leave to amend.

LEGAL STANDARD

"[A] demurrer tests the legal sufficiency of the allegations in a complaint." (Lewis v. Safeway, Inc. (2015) 235 Cal.App.4th 385, 388.) A demurrer can be used only to challenge defects that appear on the face of the pleading under attack or from matters outside the pleading that are judicially noticeable. (See Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994 [in ruling on a demurrer, a court may not consider declarations, matters not subject to judicial notice, or documents not accepted for the truth of their contents].) For purposes of ruling on a demurrer, all facts pleaded in a complaint are assumed to be true, but the reviewing court does not assume the truth of conclusions of law. (See Aubry v. Tri-City Hosp. Dist. (1992) 2 Cal.4th 962, 967.) The only issue a demurrer is concerned with is whether the complaint, as it stands, states a cause of action. (See Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.)

Where a demurrer is sustained, leave to amend must be allowed where there is a reasonable possibility of successful amendment. (See Goodman v. Kennedy (1976) 18 Cal.3d 335, 348.) The burden is on the plaintiff to show the court that a pleading can be amended successfully. (Ibid.; see also Lewis v. YouTube, LLC (2015) 244 Cal.App.4th 118, 226.) However, "[i]f there is any reasonable possibility that the plaintiff can state a good cause of action, it is error to sustain a demurrer without leave to amend." (Youngman v. Nevada Irrigation Dist. (1969) 70 Cal.2d 240, 245).

DISCUSSION

I.

Meet
and Confer

Before filing a demurrer, the demurring or moving party shall meet and confer with the party who has filed the pleading in person, by telephone, or by video conference. (Code Civ. Proc., § 430.41, subd. (a).) Furthermore, the demurring or moving party must file a declaration detailing their meet and confer efforts. (Code Civ. Proc., § 430.41, subd. (a)(3).)

Here, the parties discussed the demurrer by telephone. (See Walker Decl., ¶ 3.) Therefore, the meet and confer requirement has been satisfied. (See Code Civ. Proc., § 430.41, subd. (a).)

II.

Negligence

(Cause of Action No. 1)

The Court overrules Defendant's demurrer to the first cause of action.

To state a claim for negligence, a plaintiff must allege the elements of (1) "the existence of a legal duty of care," (2) "breach of that duty," and (3) "proximate cause resulting in an injury." (McIntyre v. Colonies-Pacific, LLC (2014) 228 Cal.App.4th 664, 671.)

Plaintiffs allege that Defendant was "driving carelessly and with reckless disregard for the safety of others." (Compl., ¶ 7.) As a result, Defendant crashed into Plaintiffs' vehicle on Silver Lake Boulevard and Parkman Avenue in Los Angeles. (See id. at ¶¶ 2, 8.) The crash caused multiple injuries to Plaintiffs. (See id. at ¶ 8.)

Defendant contends that Plaintiffs' allegations are too vague to support their negligence claim. (See Demurrer, p. 4:3-9.) The Court disagrees. Plaintiffs' allegations sufficiently plead that Defendant breached his duty of care by driving carelessly and/or recklessly and injuring Plaintiffs. (See id. at ¶¶ 2, 8.) When assumed as true, these allegations give Defendant notice as to the basis for Plaintiff's claim and sufficiently state a cause of action for negligence.

The demurrer to this cause of action is overruled.

III.

Negligence

Per Se (Cause of Action No. 2)

Negligence per se can

be invoked when: (1) the defendant violated a statute, ordinance, or regulation of a public entity; (2) that violation caused an injury or death; (3) said death or injury resulted from occurrence which the law was designed to prevent; and (4) the person suffering the injury or death was one of the class of persons for whose protection the law was adopted. (See *Urhausen v. Longs Drug Stores Cal., Inc.* (2007) 155 Cal.App.4th 254, 267; see also Evid. Code, § 669, subd. (a).) However, negligence per se is not an independent cause of action; it is simply an evidentiary doctrine embedded within a general negligence claim. (See *Epochal Enters., Inc. v. LF Encinitas Props., LLC* (2024) 99 Cal.App.5th 44, 58 [“Negligence per se is an evidentiary doctrine, rather than an independent cause of action.”]; *Jones v. Awad* (2019) 39 Cal.App.5th 1200, 1210 [“Negligence per se is an evidentiary doctrine, rather than an independent cause of action.”]; *Johnson v. Honeywell Intern. Inc.* (2009) 179 Cal.App.4th 549, 555 [“negligence per se is not a separate cause of action, but creates an evidentiary presumption that affects the standard of care in a cause of action for negligence.”].)

For this reason, Plaintiffs cannot pursue an independent cause of action for negligence per se. (See *Epochal Enters., Inc. v. LF Encinitas Props., LLC* (2024) 99 Cal.App.5th 44, 58; *Jones v. Awad* (2019) 39 Cal.App.5th 1200, 1210; *Johnson v. Honeywell Intern. Inc.* (2009) 179 Cal.App.4th 549, 555.) The demurrer to this cause of action is sustained without leave to amend.

CONCLUSION

For the foregoing reasons, Defendant’s demurrer to the 1st cause of action is OVERRULED.

Defendant’s demurrer to the 2nd cause of action is SUSTAINED without leave to amend.

Defendant is ordered to file and serve an answer to the complaint within twenty days of the Court’s order.